

ORDER SHEET

**LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT**

Case No. CrI. Misc. No.22547/B/2021

Muhammad Azhar Iqbal Versus The State & another

S.No. of order/ Proceedings	Date of order/ Proceedings	Order with signature of Judge and that of Parties of counsel, where necessary.
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21.05.2021	Mr. Muhammad Khalil Rana, Advocate for petitioner. Malik Muhammad Ashfaq, Advocate for complainant. Mr. Nisar Ahmad Virk, Deputy Prosecutor General. Samar, SI and Umar Hayat, ASI.
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Through this petition, Muhammad Azhar Iqbal petitioner seeks post arrest bail in case FIR No.296 dated 11.11.2015 registered for offence under Section 489-F of Pakistan Penal Code, 1860, at Police Station Qadir Pur, District Jhang.

2. Allegation against the petitioner is that he issued a cheque valuing Rs.1,700,000/- to the complainant which stood dishonoured on presentation to the concerned bank.

3. Arguments heard. Record perused.

4. It is evident even from the instant FIR that against the same alleged liability of Rs.1,700,000/- the cheque issued by the petitioner was returned and earlier FIR No.66 dated 07.03.2013 was got registered under Section 489-F of Pakistan Penal Code, 1860, at the same police station by the complainant against the petitioner and during his judicial custody in that case petitioner issued another cheque for the same amount against the same liability that also stood returned on its presentation to the bank concerned which shows that for a single alleged financial obligation petitioner is facing two criminal cases simultaneously.

It has also been noticed that FIR is silent about the nature of liability against which the cheques, subject matter of both the criminal cases have been issued by the petitioner. In this regard, stance of the petitioner controverts the version subsequently rendered by the complainant during the investigation of this case. However, it is admitted that the Investigation Agency has not investigated in this regard and no outcome of investigation is available on file at the same point whereas to constitute an offence punishable under Section 489-F of Pakistan Penal Code, 1860, requirement of law is issuance of cheque with dishonest intention and that too towards repayment of a loan or fulfillment of an obligation. This makes it clear that mere issuance of cheque by one person to other without satisfying the supra mentioned pre requisites, does not constitute the alleged offence. In the situation, this Court is of the view that in this case it is yet to be determined by the learned trial court as to whether the subject cheque was issued with dishonest intention, for repayment of loan or for fulfillment of some financial obligation, or under the circumstances given by the petitioner even during the investigation. This aspect of the case in hand makes it one of further inquiry into petitioner's guilt. The offence alleged against the petitioner admittedly does not fall within the prohibitory clause of Section 497 of the Code of Criminal Procedure, 1898. No material progress in the trial could be argued today. Petitioner is behind the bars since his arrest on 27.01.2021. So far as the alleged abscondence of the petitioner in this case as well as in the earlier registered criminal case is concerned, this Court is of the opinion that as the petitioner has made out his case one of further inquiry into his guilt, the alleged abscondance credibility, reasons and relevance of which is yet to be seen by

the learned trial court after recording of evidence, is not a circumstance sufficient to disentitle him to the grant of post arrest bail. In consideration of all the facts mentioned supra, this petition is allowed and the petitioner is admitted to post arrest bail subject to his furnishing bail bonds in the sum of Rs.500,000/- with two sureties each in the like amount to the satisfaction of learned trial court.

(Syed Shahbaz Ali Rizvi)
Judge

APPROVED FOR REPORTING

Judge

Nazir